

JULY 22, 2026 LAW AND MOTION CALENDAR
Judge NICOLE S. HEALY, DEPARTMENT 28

Case	Title / Nature of Case
02:00 PM LINE 1	
19-CIV-00851	NORMAN PICKER, JR, ET AL. VS. KATHERINE LOUDD, ET AL.
NORMAN PICKER KATHERINE LOUDD	CHRISTOPHER J. KELLY BRIAN A. BARNHORST

Plaintiffs' Motion for Relief After Judgment

TENTATIVE RULING:

The parties are reminded that exhibits must be properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

The parties’ proposals and counter-proposals are too extensive for the court to address at this time. The parties are **ORDERED TO APPEAR** so that the court may specially-set a hearing on the motion.

02:00 PM **LINE 2**

23-CIV-04242

ZABALLA SQUARE INVESTMENTS L.P. VS. JOHN SHEPUTIS, ET AL.

ZABALLA SQUARE INVESTMENTS L.P.
JOHN SHEPUTIS

ROBERT R. CROSS
ADRIAN J. SAWYER

Cross-defendants John Sheputis and Sheputis DC Investments, LLC's Demurrer to Additional Cross-complaint

TENTATIVE RULING:

Additional Cross-Defendants John Sheputis and Sheputis DC Investments, LLC's Demurrer to each cause of action in the Additional Cross-complaint of George Cresson is **SUSTAINED with leave to amend** as to the first cause of action for fraud, second cause of action for breach of fiduciary duty, fourth cause of action for professional negligence, fifth cause of action for waste, and sixth cause of action for defamation, and **SUSTAINED without leave to amend** as to the third cause of action for conspiracy, pursuant to Code of Civil Procedure, section 430.10, subdivision (e).

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*)). A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*)).

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry, supra*, 2 Cal.4th at p. 967.) Leave to amend should not be granted where, in all probability, amendment would be futile. (*Foroudi, supra*, 57 Cal.App.5th at p. 1001.) The party seeking leave to amend has the burden of demonstrating the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes, supra*, 38 Cal.App.5th at p. 687.)

B. Fraud

The elements of a cause of action for fraud are: (1) a misrepresentation, which can be a false representation, concealment, or nondisclosure of a material fact; (2) knowledge of falsity or scienter; (3) intent to defraud or induce reliance; (4) actual and justifiable reliance by the
